

THE PLANTS (QUARANTINE) ACT

ORDERS
(under section 3)

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THE PLANTS (QUARANTINE) ACT

ORDER
(under section 3)

THE PAWPAP RINGSPOT VIRUS ORDER, 1994

(Made by the Minister on the 15th day of September, 1994)

L.N. 72/94

1. This Order may be cited as the Pawpaw Ringspot Virus Order, 1994.
2. The Pawpaw Ringspot Virus is hereby declared to be a notifiable plant pest within the meaning of the Act.
3. The areas specified in the Schedule are hereby declared to be infected with the Pawpaw Ringspot Virus plant pest and to be infected areas within the meaning of the Act. Schedule.
4. Except with the approval in writing of the Chief Plant Quarantine Officer, no person shall move, despatch or remove any earth, soil, manure, pawpaw, pawpaw seedlings, pawpaw products or other things into or out of any infected area.
5. The planting, replanting or cultivation of pawpaw plants within any infected area is prohibited until notification of the determination of the Chief Plant Quarantine Officer to the contrary is published in the *Gazette*.
6. Every owner or occupier and every person having charge or management of land on which pawpaws are grown shall forthwith give notice in writing to the Chief Plant Quarantine Officer specifying—
 - (a) his name and address;
 - (b) the name and location of the property on which the pawpaws are grown;
 - (c) the type of pawpaws grown;
 - (d) the quantity of pawpaws grown; and
 - (e) the manner in which and the person to whom the pawpaws are sold.

7. Every exporter of pawpaws shall forthwith give notice to the Chief Plant Quarantine Officer in writing specifying—

- (a) the farm of origin of the pawpaws;
- (b) the place from which any pawpaw seeds or pawpaw seedlings are obtained.

8. Where the Chief Plant Quarantine Officer is not satisfied with the information given under paragraph 6 or 7, he shall by notice in writing require the owner, occupier, person having charge or management of the land or exporter, as the case may be, to furnish him with such further information, as he may require, concerning the matters specified under paragraph 6 or 7.

SCHEDULE

(Paragraph 3)

Infected Areas

- (a) Saint Mary—Green Castle Estate and Agualta Vale and any area within a five mile radius of each farm;
- (b) Saint Thomas—Belvedere Estate; Tais Farm, Yallahs and any area within a five mile radius of each farm;
- (c) Saint Catherine—Doublewell Farm, Christian Pen and any area within a five mile radius of the farm;
- (d) Clarendon—Clarendon Park Orchard, farm owned by National Commercial Bank Investments Limited, Clarendon Park;
- (e) Clarendon—Lejba Farm, Sevens;
- (f) Manchester—Rochester Farm, New Forest.

THE PLANTS (QUARANTINE) ACT

ORDER
(under section 3)

THE PINK HIBISCUS MEALYBUG ORDER, 2007

(Made by the Minister on the 14th day of August, 2007)

L.N. 145/2007
Amends:
L.N.n. 6A/2008
92B/2009

1. This Order may be cited as the Pink Hibiscus Mealybug Order, 2007.
2. The Pink Hibiscus Mealybug (*Maconellicoccus hirsutus*) is hereby declared to be a notifiable plant pest.
3. The areas specified in the Schedule are hereby declared to be infected or suspected of being infected with the Pink Hibiscus Mealybug and to be infected areas within the meaning of the Act. Schedule.
4. Except with the approval in writing of the Chief Plant Quarantine Officer, no person shall move, dispatch or remove any plant, seedling, cutting, plant product or any plant related material or article into or out of an infected area.
5. Every owner, occupier or any other person having the charge or management of land who knows of, or suspects the existence of, the Pink Hibiscus Mealybug on such land—
 - (a) shall, in addition to giving notice in writing to the Chief Plant Quarantine Officer of that fact and of all other available information as to the extent and nature of the pest, report the information to—
 - (i) the Parish Agricultural Manager, Rural Agricultural Development Authority (RADA) for the parish in which the land is situated; or
 - (ii) the Principal Research Director of the Bodles Agricultural Research Station in Old Harbour in the parish of St. Catherine; and
 - (b) unless authorized in writing to do so by the Chief Plant Quarantine Officer, shall not remove from the land (hereinafter referred to as “the reported land”) any plant, seedling, cutting, plant product or any plant related material or article.

6. Where the Chief Plant Quarantine Officer is not satisfied with the information given by notice in writing under section 7 of the Act, he may by notice in writing require the owner, occupier or person having charge or management of the reported land, as the case may be, to furnish him, within the period specified in the notice, with such further information as he may require.

7.—(1) The powers specified in sub-paragraph (2) may be exercised by—

- (a) the Chief Plant Quarantine Officer, a Quarantine Officer or any other officer appointed under section 5(1) of the Act, in addition to the powers conferred upon him by section 5(2) of the Act; or
- (b) any authorized person, in addition to the authority given to him to perform the duties of inspection.

(2) Sub-paragraph (1) refers to the power to—

- (a) direct the owner, occupier or any other person having charge or management of any land to implement measures specified by the Chief Plant Quarantine Officer for the destruction and control of the Pink Hibiscus Mealybug and the production and protection of organisms that are natural enemies to that pest;
- (b) for the purpose of controlling the spread of the Pink Hibiscus Mealybug, enter upon any land and with such assistance as may be necessary, destroy, remove, uproot, dispose of, prune or treat any plant, plant product or any plant related material or article on such land and, whether such plant, plant product or any plant related material or article is infected or not.

SCHEDULE

(Paragraph 3)

Infected Areas

The parishes of—

- (a) Kingston;
- (b) Portland;
- (c) Saint Andrew;
- (d) Saint Catherine;
- (e) Saint Thomas; and
- (f) any area within a five mile radius of an infected area

THE PLANTS (QUARANTINE) ACT

ORDER
(under section 3)THE PLANTS (QUARANTINE) (CONTROL OF RALSTONIA SOLANACEARUM
BACTERIUM PLANT PEST) ORDER, 2004*(Made by the Minister on the 29th day of March, 2004)*L.N. 44/2004
96/2004
2B/2005.

1. This Order may be cited as the Plants (Quarantine) (Control of Ralstonia Solanacearum Bacterium Plant Pest) Order, 2004.

2. The ralstonia solanacearum bacterium is hereby declared to be a notifiable plant pest.

3. The areas specified in the Schedule are hereby declared to be infected with the ralstonia solanacearum bacterium plant pest. Schedule.

4. Except with the approval in writing of the Chief Plant Quarantine Officer, no person shall remove any soil, banana, plantain, heliconia, ginger lily or ornamental plants of the heliconiaceae family, weeds, plant parts or plant products into or out of any infected area.

5.—(1) Subject to paragraph (2), the planting, replanting, or cultivation of banana or plantain within any infected area is prohibited.

(2) The Chief Plant Quarantine Officer shall, by notice in the *Gazette*, specify the date on which the planting, replanting, or cultivation of banana or plantain within an infected area is no longer prohibited.

6.—(1) Every owner, occupier or person having charge or management of any land on which banana or plantain is grown who has knowledge of or suspects the existence of the ralstonia solanacearum bacterium plant pest on such land shall forthwith give written notice of the existence or suspected existence of the ralstonia solanacearum bacterium plant pest to—

- (a) the Chief Plant Quarantine Officer;
- (b) the Parish Agricultural Manager of the office of the Rural Agricultural Development Authority of the parish in which the land is situated;
- (c) the Principal Research Director, Montpellier Agricultural Research Station in the parish of Saint James;

- (d) the Research Director/Banana Board Research Department, Kingston Gardens in the parish of Kingston; and
- (e) the Agronomist, European Union Banana Support Programme, Boundbrook Wharf in the parish of Portland.

(2) The notice referred to in sub-paragraph (1) shall specify—

- (a) the name and address of the owner, occupier or person having charge or management of the land;
- (b) the name and location of the land on which the banana or plantain is grown;
- (c) the type of banana or plantain grown;
- (d) the source of the planting material for the banana or plantain grown on that land;
- (e) the quantity of banana or plantain grown; and
- (f) the manner in which and the person to whom the banana or plantain is sold.

7. Every owner, occupier or person having charge or management of land on which banana or plantain is grown and on which the *ralstonia solanacearum* bacterium plant pest is identified, shall implement all the recommendations specified by the Chief Plant Quarantine Officer or any person authorized by the Chief Plant Quarantine Officer in that behalf, in respect to that plant pest.

8. No person shall, unless authorized by the Chief Plant Quarantine Officer in writing—

- (a) transport from any infected area any fruit, sucker, corm, leaves or any other material from the banana or plantain;
- (b) drive or transport any vehicle used in an infected area on to land in any other area on which banana or plantain is grown.

9. Where the Chief Plant Quarantine Officer is not satisfied with the information given under paragraph 6 (2), he shall by notice in writing require the owner, occupier or person having charge or management of the land, as the case may be, to furnish him, within the period specified in the notice, with such further information as he may require.

10. Any person appointed under section 5 of the Plants (Quarantine) Act may, in the carrying out of his duties under that section—

- (a) direct the owner, occupier or other person having charge of the management of land in an infected area to implement such measures as are specified by the Chief Plant Quarantine Officer for the destruction and the control of the *ralstonia solanacearum* bacterium plant pest;

- (b) for the purpose of inspecting any land in an infected area in order to control the spread of *ralstonia solanacearum* bacterium plant pest, enter upon such land and with such assistance as may be necessary, destroy any plant found thereon and in accordance with the approved eradication protocol of the Ministry of Agriculture.

11. Any person who contravenes the provisions of this Order is guilty of an offence and shall, on summary conviction before a Resident Magistrate, be liable to a fine not exceeding fifty thousand dollars and in default of payment, to imprisonment with hard labour for a period not exceeding one year and on a further conviction within a period of twelve months for a second or subsequent offence, he shall be liable at the discretion of the court to be imprisoned for a further term not exceeding six months with hard labour in lieu of a fine to which he is liable.

SCHEDULE

(Paragraph 3)

Infected Areas

The infected areas are—

- (a) the parish of St. Thomas;
- (b) the parish of St. James;
- (c) Portland;
- (d) St. Mary.

THE PLANTS (QUARANTINE) ACT

REGULATIONS
(under section 3)THE PLANTS (QUARANTINE) (CITRUS GREENING DISEASE (HUANGLONGBING)
ORDER, 2010*(Made by the Minister on the 19th day of January, 2010)*

L.N. 4/2010

1. This Order may be cited as the Plants (Quarantine) (Citrus Greening Disease) (Huanglongbing) Order, 2010.

2. The Citrus Greening Disease (huanglongbing), hereinafter referred to as "huanglongbing", is hereby declared to be a notifiable plant pest with which the following parishes of Jamaica are infected—

- (a) St. Catherine;
- (b) St. Ann;
- (c) St. Mary; and
- (d) Clarendon.

3. No person shall, unless the Chief Plant Quarantine Officer has given him written permission to do so, remove or dispatch from, or move into, any area of Jamaica any citrus—

- (a) plant;
- (b) seedling;
- (c) cutting;
- (d) plant product;
- (e) plant related material; or
- (f) plant related article.

4. No person who operates a citrus nursery shall move or sell any citrus cutting or citrus plant outside of the parish wherein that citrus nursery is located, unless the Chief Plant Quarantine Officer has given that person written permission to do so.

5.—(1) A person who has charge or management of land on which that person knows or suspects huanglongbing is present shall, in addition to complying with the provisions of section 7 of the Act, report the same information required by section 7 of the Act to—

- (a) the Parish Agricultural Manager of the Rural Agricultural Development Authority (RADA) for the parish in which the land is situated; or
- (b) the Principal Research Director of the Bodles Agricultural Research Station, situated in Old Harbour in the parish of St. Catherine.

(2) A person to whom the requirement of sub-paragraph (1) applies, shall not, unless he has obtained the written permission of the Chief Plant Quarantine Officer to do so, remove from the affected land any citrus—

- (a) plant;
- (b) seedling;
- (c) cutting;
- (d) plant product;
- (e) plant related material; or
- (f) plant related article.

6.—(1) The Chief Plant Quarantine Officer may demand from a person who purports to comply with section 7 of the Act, such additional information as he deems necessary to supplement the information furnished to him in compliance with the section.

(2) The Chief Plant Quarantine Officer shall make any demand under subparagraph (1) by notice in writing to the person required to furnish the additional information, and the notice shall specify the period within which the additional information is to be furnished.

7.—(1) The Chief Plant Quarantine Officer, or any person he so authorizes in writing, may, for the purpose specified in sub-paragraph (2), and with such persons as may be required to assist, enter any land on which huanglongbing is known or suspected to be present, whether or not section 7 of the Act has been complied with in relation to that land.

(2) Upon entering land in accordance with sub-paragraph (1), the Chief Plant Quarantine Officer, or the person he has so authorized, and any accompanying assistants, may in their absolute discretion and in the interest of controlling the spread of huanglongbing, destroy, remove, uproot, dispose of, prune or treat any item specified in paragraph 5(2).

(3) If any such item was not infected, that fact alone shall not render unlawful the taking of any action in relation thereto, including any action authorized by subparagraph (2).

(4) Before acting in accordance with sub-paragraph (1) in relation to any land, the Chief Plant Quarantine Officer or any person he so authorizes, shall ensure that reasonable notice is given to the person who has charge or management of that land.

THE PLANTS (QUARANTINE) ACT

REGULATIONS
(under section 38)

THE PLANTS (IMPORTATION) CONTROL REGULATIONS, 1997

*(Made by the Minister on the 22nd day of April, 1997)*L.N. 43/97
130/2005.

1. These Regulations may be cited as the Plants (Importation) Control Regulations, 1997.

2. For the purposes of these Regulations—

“importer” means a person who is importing or has imported a plant into the Island;

“inspector” means a person who has been given authority by the Chief Plant Quarantine Officer to perform specific duties of inspection;

“inspection” means an official visual examination of plants, plant products or other regulated articles to determine if pests are present and determine compliance with phytosanitary regulations;

“Quarantine Officer” has the same meaning as in the Plants (Quarantine) Act

“regulated articles” means any plant, plant product, storage place, packaging, conveyance, container, soil and any other organism, object or material capable of harbouring or spreading pests, deemed to require phytosanitary measures particularly where international transportation is involved;

PART I

Plants, Plants for Planting, etc.

3. In this Part—

“pest risk analysis” means the process of evaluating biological or other scientific and economic evidence to determine whether a pest should be regulated and the strength of the phytosanitary measures to be taken against it carried out in accordance with the International Plant Protection Convention, 1951 (IPPC) as amended from time to time and in force in Jamaica;

“plants for planting” means plants intended to remain planted, to be planted or replanted;

“plants products” means unmanufactured material of plant origin and those manufactured products that, by their nature or that of their processing, may create a risk for the introduction and spread of pests.

4.—(1) No plant, plant products or plants for planting shall be imported into the Island except in accordance with the provisions of these Regulations.

(2) The importation of plants, plant products or plants for planting or soil specified in Part III of the First Schedule is hereby prohibited.

First
Schedule.
Part III.

5.—(1) Subject to regulation (2), no plant, plant products or plants for planting (other than those specified in Part II of the First Schedule) shall be imported into the Island except in accordance with the terms of an import permit granted by the Chief Plant Quarantine Officer.

(2) The import permit for the importation of items listed in Part I of the First Schedule shall be either a single use permit or a multiple use permit.

6.—(1) Every plant, plant product or plant for planting entering the Island shall be subject to inspection by a Plant Quarantine Inspector who may—

(a) refuse entry of any such plant, plant product, or plant for planting if—

(i) it contains pests;

(ii) any condition of the import permit has not been complied with; or

(b) allow entry for any such plant, plant products or plants for planting unconditionally or subject to such conditions as may be deemed necessary.

(2) Every plant, plant product or plants for planting imported into the Island shall be accompanied by a valid phytosanitary certificate issued by the competent authority of the exporting country which, together with the import permit, shall be presented to the Plant Quarantine Inspector at the time of inspection.

7.—(1) Subject to the provisions of regulation 5, if so required by the Chief Plant Quarantine Officer, every plant, plant products or plants for planting, upon entry into the Island, shall be—

(a) removed by such means, in such manner and subject to such conditions as the Chief Plant Quarantine Officer may direct to a post-entry quarantine facility approved by the Chief Plant Quarantine Officer for the purpose of quarantine; and

(b) kept in quarantine for such period as the Chief Plant Quarantine Officer may direct.

(2) The release from quarantine of any plant, plant product or plant for planting shall be subject to and dependent upon the result of reinspection and of diagnostic examination and any tests which the Chief Plant Quarantine Officer may deem necessary to carry out for the detection and identification of pests.

(3) Notwithstanding the expiry of the period of quarantine directed by the chief Plant Quarantine Officer under paragraph (1), no plant, plant product or plant for planting shall be removed from any quarantine depot without the prior written permission of the Chief Plant Quarantine Officer and such permission may be either unconditional or subject to such conditions as may be specified.

8.—(1) The expenses incidental to the keeping in quarantine of a plant, plant product or plant for planting shall be borne by the importer.

(2) Every plant, plant product or plant for planting shall be kept in quarantine at the risk of the importer.

(3) Any plant, plant product or plant for planting, which, while in quarantine, develops or, in the opinion of the Chief Plant Quarantine Officer, shows symptoms of any pest, may be destroyed without payment of compensation.

9.—(1) Every person who desires to import plants, plant products or plants for planting shall apply in writing to the Chief Plant Quarantine Officer for an import permit.

(2) An application under paragraph (1) shall specify—

- (a) the name, address and telephone number of the importer;
- (b) the name (scientific and common) and quantity of each item to be imported;
- (c) the country from which the item is to be imported;
- (d) the type of permit required; and
- (e) the port of entry of the items to be imported.

(3) Each application for an import permit shall be accompanied by the appropriate fee specified in the Second Schedule.

Second
Schedule.

(4) The Chief Plant Quarantine Officer shall, in determining whether to grant an import permit, conduct a pest risk analysis to determine the specific conditions under which the item may be imported and shall not grant a permit for items that are deemed high risk based on the outcome of the pest risk analysis.

(5) An import permit issued under these Regulations shall be in the form prescribed in the Third Schedule and shall, subject to paragraph (6), be valid for a period of four months from the date of issue thereof.

Third
Schedule.

(6) The Chief Plant Quarantine Officer may revoke any permit at any time if there is a change in the pest status in the exporting country.

(7) No person shall be issued an import permit if the plants, plant products or plants for planting to be imported originate in a country where there are pests which, if introduced into the Island, could adversely affect agriculture.

PART II

Genetically Modified Plants

10. In this Part—

“genetically modified plant” means a plant that has been genetically modified and imported into Jamaica for the purpose of experimentation under controlled conditions.

11. No plant, seed, cutting or slip shall be imported into the Island except in accordance with the provisions of these Regulations.

12. No plant, seed, cutting or slip shall be imported into the Island except in accordance with the terms of a permit granted by the Chief Plant Quarantine Officer.

13.—(1) No plant, seed, cutting or slip shall be landed without the prior written permission of the Chief Plant Quarantine Officer.

(2) Every plant, seed, cutting or slip being landed shall be subject to inspection by the Chief Plant Quarantine Officer who may—

(a) refuse permission for any such plant, seed, cutting or slip to be landed if satisfied—

(i) that any such plant, seed, cutting or slip is plagued with any disease; or

(ii) that any condition of a permit allowing the importation of any such plant, seed, cutting or slip has not been complied with; or

(b) grant permission for any such plant, seed, cutting or slip to be landed either unconditionally or subject to such conditions as he may impose and forward the plant to the importer.

14.—(1) Subject to the provisions of regulation 13 if so required by the Chief Plant Quarantine Officer every plant, seed, cutting or slip upon being landed in the Island shall be removed by such means, in such manner and subject to such conditions as the Chief Plant Quarantine Officer may direct to a quarantine depot approved by the Chief Plant Quarantine Officer for the purpose of quarantine and shall be kept in quarantine there for such period as the Chief Plant Quarantine Officer may direct.

(2) The release from quarantine of any plant, seed, cutting or slip shall be subject to and dependent upon the result of re-inspection and of any

diagnostic examination and any tests which the inspector may deem necessary to carry out for the detection of disease.

(3) Notwithstanding the expiry of the period of quarantine directed by the inspector under paragraph (1) no plant, seed, cutting or slip shall be removed from any quarantine depot without the prior written permission of the inspector and such permission may be either unconditional or subject to such conditions as may be specified.

15.—(1) The expenses of and incidental to the keeping in quarantine of a plant, seed, cutting or slip shall be borne by the consignee of such plant, seed, cutting or slip.

(2) Every plant, seed, cutting or slip shall be kept in quarantine at the risk of the consignee.

(3) When any plant, seed, cutting or slip, while in quarantine in accordance with the provisions of these Regulations, develops or, in the opinion of the Quarantine Officer, shows symptoms of, any disease, the spread of which would endanger the health of any person, animal or other living organism, such plant, seed, cutting or slip may, with the approval of the Minister, be destroyed without payment of compensation.

Seeds

16. No seeds shall be landed in the Island unless there is produced to the Quarantine Officer in respect thereof a statement by the importer that—

- (a) any such seeds have been packaged in—
 - (i) a sealed plastic bag; or
 - (ii) a plastic or paper envelope,
of at least 5 millimetres in thickness;
- (b) after having been packaged in accordance with paragraph (a) the seeds have been placed in a metal container which is placed in another metal container that is capable of preventing spillage of the seeds and which is conspicuously labeled with the number of seeds and name of seeds printed thereon;
- (c) the inner and outer containers in which the seeds are packed are separated by shock-absorbing material;
- (d) where there is more than one container being transported, the containers are placed in a sturdy container made of corrugated fibreboard, cardboard, wood or other material of equivalent strength;

- (e) each outer container is labelled indicating the contents, place of origin, name and address of consignee and consignor along with respective telephone numbers, a statement indicating that the propagative material contained therein is derived from genetic engineering procedures and possess novel traits along with the notation 'For experimentation purposes only, not for sale or reuse'.

Plants

17.—(1) No plant shall be imported if—

- (a) it is in flower, seed or fruit;
- (b) it is more than 15 centimetres (6 inches) tall.

(2) No plant shall be landed in the Island unless there is produced to the Quarantine Officer in respect thereof a statement by the importer stating that—

- (a) such plants have been packaged in a sealed plastic bag of at least 5 millimetres in thickness;
- (b) after having been packaged in accordance with paragraph (a) the plants have been placed in a sturdy, sealed, shatterproof, leak-proof metal container;
- (c) any plant transported in a pot is set in a soil free mix and covered before being boxed;
- (d) each container is labelled indicating the contents and number of specimens, place of origin, name and address of consignee and consignor along with respective telephone numbers, a statement indicating that the propagative material contained therein is derived from genetic engineering procedures and possess novel traits along with the notation 'For experimentation purposes only, not for sale or reuse'.

Slips and Cuttings

18. No slips or cuttings shall be landed in the Island unless there is produced to the Quarantine Officer in respect thereof a certificate stating that—

- (a) such slips or cuttings have been packaged in a sealed plastic bag of at least 5 millimetres in thickness;
- (b) after having been packaged in accordance with paragraph (a) the slips or cuttings have been placed in a sturdy, sealed, shatterproof, leak-proof metal container;
- (c) any slips or cuttings transported in a pot are set in a soil free mix and covered before being boxed;

- (d) each outer container is labelled indicating the contents and number of specimens, place of origin, name and address of consignee and consignor along with respective telephone numbers, a statement indicating that the propagative material contained therein is derived from genetic engineering procedures and possess novel traits along with the notation 'For experimentation purposes only, not for sale or reuse'.

Application for Permit to Import

19.—(1) A person who wishes to import a plant, seed, cutting or slip into the Island shall apply to the National Biosafety Committee for permission to do so and thereafter upon its approval such application shall be submitted by the Committee to the Plant Quarantine Division of the Ministry responsible for agriculture for the grant of a permit.

(2) The National Biosafety Committee shall, in determining whether to grant approval of the application, consider the applicants ability to enforce adequate procedures and safeguards to ensure that no contamination by or release of the plant, seed, cutting or slip which is detrimental to the health or safety of any human, animal or other living organism will occur at the port of entry or otherwise in the Island.

(3) Each application for a permit to import a plant shall include information on the schedule of arrival of the items to be imported.

Transportation

20. Where permission has been granted for the entry of a plant, seed, cutting or slip pursuant to regulation 13, the importer shall transport the plant, seed, cutting or slip to its final destination.

21. Every importer shall keep such records, make such returns and furnish such information as the Plant Quarantine Division may at any time require in relation to the following matters—

- (a) the number or quantity of plants, seeds, slips or cuttings imported;
- (b) the number or quantity of plants, seeds, slips or cuttings received;
- (c) the name of the property or properties on which the plants, seeds, slips or cutting originated;
- (d) the date of receipt;
- (e) the condition in which the plants, seeds, slips or cuttings were received;
- (f) any other particulars required by the Division.

22.—(1) A person who imports any plant, plant product or plant for planting into the Island without a valid phytosanitary certificate shall be guilty of an offence and shall on conviction be liable before a Resident Magistrate to a fine of ten thousand dollars.

(2) A person who imports any item prohibited under regulation 4 (2) commits an offence and shall be liable on conviction before a Resident Magistrate to a fine not exceeding one hundred thousand dollars.

(3) A person who imports items without an import permit required under regulation 5 commits an offence and shall be liable on conviction before a Resident Magistrate to a fine not exceeding ten thousand dollars.

FIRST SCHEDULE

(Regulation 5)

PART I

Items that require Import Permit

1. A. Fresh fruits and vegetables, citrus fruits, plants and budwood.
B. Banana—fruits, suckers, plants or plant parts.
C. Coconut/palm family—seeds.
D. Coffee—berries and plants.
E. Anthurium plants—tissue cultured.
2. Other plants and plants for planting and plant parts.

All plants and plants for planting must be bare-rooted, in-rooted cuttings, tissue cultured or seedlings in liners or small trays (maximum two inches wide and two inches deep).

Bare-rooted plants and plants budded as grafted must be no more than twenty inches in height from root up to top of plant.

Plants and plants budded or grafted must not be more than twenty-four inches in height.

Flowers, foliage, ornamental branches and bulbs.

PART II

Items that do not require import permit

Frozen fruits and vegetables.

Shredded vegetables.

Canned fruits and vegetables.

Dried fruits and vegetables.

Processed or otherwise manufactured plant products that by their nature or that of their processing do not create a risk for the introduction and spread of pests.

PART III

Items whose importation is prohibited

- A.—Soil.
- B.—Plants in growing medium (soil or non-soil).
- C.—Plants and plant products or plants for planting from countries or areas within countries where the following pests (or any other pests that may be deemed to be of high risk based on a pest risk analysis) are known to exist.

FIRST SCHEDULE, *contd.***Insects**

Mediterranean Fruit Fly	— <i>Ceratitis capitata</i>
Guava Fruit Fly	— <i>Anastrepha striata</i>
Sapodilla Fruit Fly	— <i>Anastrepha serpentina</i>
Mexican Fruit Fly	— <i>Anastrepha ludens</i>
South American Fruit Fly	— <i>Anastrepha fraterculus</i>
Oriental Fruit Fly	— <i>Bactrocera dorsalis</i>
Carambola Fruit Fly	— <i>Bactrocera carambolae</i>
Mango Fruit Fly	— <i>Ceratitis cosyra</i>
Papaya Fruit Fly	— <i>Toxotrypana curvicauda</i>
Pink Hibiscus Mealybug	— <i>Maconelllicoccus hirsutus</i>
Papaya Mealybug	— <i>Paracoccus marginatus</i>
Mango Seed Weevil	— <i>Sternochetus mangiferae</i>
Avocado Seed Weevil	— <i>Heilipus laurir</i>
Avocado Seed Moth	— <i>Stenoma catenifer</i>
Codling Moth	— <i>Cydia pomonella</i>
Thrips Palmii	— <i>Thrips palmii</i>
Asian Long Horn Beetle	— <i>Anoplophora glabripennis</i>
Pickle Worm	— <i>Diaphania nitidalis</i>
Pineapple Mealybug	— <i>Dysmicoccus brevipes</i>
Leaf Cutting Ant	— <i>Atta cephalotes</i>
Stem Borer (hot pepper)	— <i>Fautinus cubae</i>
Sweet Potato Moth Borer	— <i>Megastus grandalis</i>
Banana Fruit Scarring Beetle	— <i>Colaspis hypochlora</i>
Banana Scab Moth	— <i>Nacoleia octasema</i>
Banana Silvering Thrips	— <i>Hercinothrips bicinctus</i>
Banana Stalk Borer	— <i>Castiomeria humboldti</i>
Banana Flower Thrips	— <i>Thrips florum</i>
Asian Citrus Psyllid	— <i>Diaphorina citri</i>
South African Citrus Psyllid	— <i>Trioza erythrae</i>
Palm Weevil	— <i>Rhynchophorus palmarum</i> (Linnaeus)
Black Palm Weevil	— <i>Rhynchophorus bilineatus</i> (Montrouzier)

Bacterial Diseases

Citrus Canker	— <i>Xanthomonas axonopodis</i> pv. <i>citri</i>
Bacterial Blight	— <i>Xanthomonas campestris</i> pv. <i>manihotis</i>

FIRST SCHEDULE, *contd.*

Citrus Greening (huanglongbing)	— <i>Liberobacter asiaticum</i> (Asian strain)
	— <i>Liberobacter africanum</i> (African strain)
Citrus Variegated Chlorosis	— <i>Xylella fastidiosa</i>
Moko or Bacterial Wilt, Blood Disease	— <i>Ralstonia solanacearum</i>
Bugtok Disease	— <i>Ralstonia solanacearum</i>
Bacterial Head Rot	— <i>Erwinia chrysanthemi</i>
Pseudostem Wet Rot	— <i>Pectobacterium Chrysanthemi</i>

Fungal Diseases

Citrus Black Spot	— <i>Guignardia citricarpa</i>
Banana Freckle Disease	— <i>Guignardia musae</i>
Panama Disease or Fusarium Wilt	— <i>Fusarium oxysporum</i> f. sp. cubense (E. F.) (Smith)
Black Sigatoka or Black Leaf Streak	— <i>Mycosphaerella fijiensis morlet</i>
Septoria Leaf Spot	— <i>Mycosphaerella</i> sp.
Lixa Grande	— <i>Sphaerodothis acrocomiola</i>
Lixa Pequena	— <i>Phyllachora torrendiella</i>
Ganoderma Butt Rot	— <i>Ganoderma</i> sp.
American Leaf Spot	— <i>Mycena citricolor/Omphalia falvida</i>
Thread Blight	— <i>Corticium koleroga</i> (Cooke)
Witches Broom	— <i>Crinipellis perniciosa</i>

Virus and Viroid Diseases

Citrus Tristeza virus (CTV, stem pitting strains)
Exocortis Viroid
Cachexia (citrus viroid)
Ringspot—Psorosis complex
Banana Bunchy Top Virus
Banana Bract Mosaic Virus
Banana Mosaic Virus
Banana Steak Virus
Banana Die-back Virus
Abaca Mosaic Virus
Enset Streak Virus
Cassava African Mosaic Virus

FIRST SCHEDULE, *contd.*

Cassava Brown Streak Virus
 Coconut Cadang-Cadang (viroid)
 Coconut Foliar Decay
 Coconut Tinangaja (viroid)
 Coconut Natuna Wilt

Nematodes

Golden Nematode — *Heterodera rostochiensis*
 Red Ring Nematode — *Bursaphelenchus cocophilus*

Phytomonal Diseases

Coconut Palm Heart Rot — *Phytophthora stahellii*
 Cedros Wilt — *Phytophthora stahellii*

Weeds

Witchweed — *Striga* spp.
 Orobanche — *Orobanche* sp.
 Benghal Dayflower — *Commelina Benghalensis*
 Tropical Soda Apple — *Solanum viarum*

Mollusca

Giant African Snail — *Achatina fulica*

SECOND SCHEDULE

(Regulation 9)

Fees for import permits and inspection
of imported items

<u>Types of Permit</u>	<u>Fees</u>
1. Single use permit	\$750.00 where the weight of the import does not exceed 22,270 kilogrammes and \$1,000.00 where the weight of the import exceeds 22,270 kilogrammes
2. Multiple use import permit	\$1,000.00 where the weight of each import does not exceed 22,270 kilogrammes \$1,500.00 where the weight of each import exceeds 22,270 kilogrammes
3. Inspection of commercial imports	\$1,000 for each shipment

JAMAICA
MINISTRY OF AGRICULTURE

PERMIT No.

(Granted by the Ministry of Agriculture under the Customs (Importation) (Prohibition) (Fruit, Plant and Vegetable) Proclamation, 1949)

SECOND SCHEDULE, *contd.*

ON _____ 20 _____
 TO _____
 OF _____
 TO IMPORT

FROM _____

SUBJECT TO THE CONDITIONS SPECIFIED ON THE REVERSE OF THIS LABEL

N.B.—No liability shall attach to the Ministry of Agriculture or to any officer or representative of the Ministry with respect to this permit.

Packages of plant material arriving without a permit label attached will be considered dangerous and will be liable to destruction.

CONDITION OF PERMIT

1. Package to arrive in Jamaica with this label attached to relevant papers.
2. Entry to be in the Port _____
3. Package and contents to be inspected on arrival in Jamaica, and treated if necessary.
4. All plant material to be accompanied by a certificate of inspection and of freedom from injurious insects and diseases, such certificate to be given by an authorized official of the ministry or department of agriculture of the country of origin. The certificate should also state that the plants were grown in an area free from the Golden Nematode.
5. Package and contents to be free from soil, and packaging material to consist of _____

ADDITIONAL DECLARATION

PERMIT NOT VALID AFTER _____

THE PLANTS (QUARANTINE) ACT

REGULATIONS

(under section 38)

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

L.N. 120/99
Amends:
124B/2006
85/2012

*(Made by the Minister on the 7th day of September, 1999)**[8th September, 1999]*

1. These Regulations may be cited as the Citrus Plant (Certification) Regulations, 1999.

2.—(1) For the purposes of these Regulations—

“Agency” means the Jamaica Citrus Protection Agency;

“appointed day” means the 8th day of September, 1999;

“budwood” means a portion of a stem or branch with a vegetative bud used in propagation for budding or grafting;

“budwood bundle” means an individually wrapped package of budwood cut from—

(a) a single parent tree;

(b) a single certified scion tree; or

(c) a group of quick multiplication block trees originating from either a single parent tree or certified scion tree;

“certified” means tested and found to be free from viruses, viroids, and other graft-transmissible diseases and horticulturally true-to-type;

“certified citrus tree” means a citrus tree propagated from budwood collected from a quick multiplication block tree, parent tree or

“certified scion tree” means a tree originating from a parent tree or the same accession as a parent tree which has been tested and found negative for all graft-transmissible diseases and free of recognizable signs of disease symptoms, bud mutation, plant pests and protected from insect vectors, and is maintained by approved members of the Agency;

“certified seed source tree” means a tree that supplies seed and has been determined by the Agency to be apparently horticulturally true-to-type, and has been certified in accordance with regulation 11;

"citrus" means all fruit of the genus citrus and all citrus relatives;

"citrus blight" means a disease of unknown origin which causes chronic decline and loss of productivity in citrus trees;

"citrus cachexia viroid" also known as xyloporosis means a graft-transmissible disease that causes phloem deterioration and blockage, leading to decline, stunting, and crop reduction, in many mandarin, mandarin hybrid, *citrus macrophylla*, Wester, Rangpur lime, sweet lime trees and rootstocks;

"citrus exocortis viroid" means a graft-transmissible disease causing tree decline, stunting, and scaling of the rootstock bark, mainly in *Poncirus trifoliata* and many *Poncirus trifoliata* hybrids and other susceptible rootstock varieties;

"citrus nursery" means any specific land, place, or site, where certified citrus trees are propagated and sold;

"citrus tatter leaf virus" otherwise known as citrange stunt, means a graft-transmissible citrus disease, which causes graft-incompatibility and decline in trees on *Poncirus trifoliata* and many *Poncirus trifoliata* hybrid rootstock;

"citrus tristeza virus" also known as "CTV" means a member of the closterovirus group containing many strains which differ in their biological effects on their citrus host;

"citrus variegated chlorosis" also known as "CVC" means a disease caused by a graft-transmissible bacterium, *Xylella fastidiosa*, which causes chronic decline, stunting and reduction of yield and marketable fruit in sweet orange;

"citrus viroids" means viroids in groups I, II, III and IV, in addition to citrus cachexia viroid and citrus exocortis viroid;

"clone" means an asexually reproduced cultivar or variety, or a group of genetically uniform trees that have been propagated vegetatively from a single, original tree;

"decline" means to become unthrifty or display loss of vigour due to disease, pests, weather conditions, or a variety of growth-limiting horticultural practices;

"graft-transmissible disease" means a disease agent spread by vegetative propagation, including known viruses, viroids, bacteria, spiroplasma, and other pathogens;

- “greening” means a disease of citrus caused by a bacterium, characterized by phloem degeneration, leaf mottle, and production of small, lopsided fruit;
- “grower” means a person who cultivates citrus, for his own use or for commercial purposes;
- “gummosis” means a disease of unknown etiology characterized by bark cracks and gumming of scion bark;
- “horticulturally true-to-type” means conforming to the description of a particular cultivar and originating from the same genetic line of descent as that cultivar;
- “indexing” means any test which will consistently confirm the presence or absence of a transmissible pathogen or identify a disease, where the test is specific for the pathogen or disease;
- “owner” includes the person receiving rent for land, (whether on his own account or as agent or representative for any other person) and the occupier of such land;
- “parent tree” means a citrus tree, the property of and maintained by the Ministry, which was obtained as a pathogen-free accession from a clean stock programme that complies with the FAO/IPGRI Guidelines for the Safe Movement of Citrus Germplasm, or any other clean stock programme approved by the Minister on the recommendation of the Agency, which is protected from insect vectors, tested and found negative for all graft-transmissible diseases, and free of recognizable signs of disease symptoms, bud mutation, and plant pests;
- “plant pest” means any species, strain, or biotype of plant, animal, or pathogenic agent, other than a beneficial organism, injurious to plants or plant products;
- “psorosis complex of virus” means a combination of the viruses psorosis-A, psorosis-B, and ringspot, spread primarily by propagation using infected budwood, which induce bark-scaling, internal wood staining, ringspot, irregular chlorotic patterns in the foliage, or eventual tree decline;
- “quick multiplication blocks” also known as “QMB” means specially designated nursery propagations meeting the requirements of these Regulations, made to multiply supplies of budwood rapidly for certified citrus tree production;

“rootstock” means a plant used as the recipient understock in budding or grafting;

“seed” means a genetic reproduction unit following sexual recombination, which is used for the production of rootstocks for citrus propagation;

“sell” includes to store for sale, or to give as a gift;

“stubborn” means a disease of citrus caused by the *Spiroplasma citri*, characterised by decline, dwarfing and production of small fruit;

“varietal block” means a group of at least five trees originating from the same parent tree, which has been planted for observation of horticultural traits.

(2) For the purposes of the definition of “citrus tristeza virus” the strains are—

- (a) mild strains which cause very little damage to citrus trees with sour orange rootstock or on susceptible scions;
- (b) severe strains which cause decline in citrus trees on sour orange rootstock or severe stunting of young trees;
- (c) other strains which cause stem pitting and slow decline in certain scion varieties regardless of rootstock.

The Jamaica Citrus Protection Agency

3.—(1) There shall be established an Agency to be known as the Jamaica Citrus Protection Agency.

(2) The Agency shall be responsible for the implementation of the mandatory citrus certification programme as detailed in the Regulations.

4.—(1) The Minister may by order delegate any of his functions to the Agency as may be specified in the order and thereupon or from such date as may be specified in the order, the Agency shall have power to perform such functions.

(2) A delegation under paragraph (1) shall be revocable by the Minister by order and no delegation shall prevent the performance of any function by the Minister.

Application for and Registration of Citrus Nursery

5.—(1) Subject to paragraph (5), any person who, on any land, place or site—

- (a) intends to produce citrus trees; or
- (b) intends to sell citrus trees,

shall make an application to the Agency in the form set out as Form 1 in the First Schedule, for registration of that land, place or site as a citrus nursery.

First Schedule.
Form 1

(2) An application under paragraph (1) shall be accompanied by—

- (a) the appropriate non-refundable fee specified in the Second Schedule; and
- (b) a detailed site plan and building plan in respect of the citrus nursery or proposed citrus nursery (as the case may be).

Second
Schedule

(3) The Agency shall, on receipt of an application under paragraph (1), cause an inspection of the citrus nursery to be carried out and where the requirements specified in paragraph (4)—

- (a) have been met, the Agency shall issue the applicant with a certificate of registration in the form set out as Form 2 in the First Schedule; or
- (b) have not been met, the Agency shall so inform the applicant in writing stating the requirements which have not been met.

Form 2.

(4) The requirements referred to in paragraph (3) are that—

- (a) a suitable drainage system is provided to lead run-off irrigation water out of the citrus nursery area;
- (b) a suitable drainage system is provided to ensure that run-off water from other citrus plantings in the vicinity of the citrus nursery is prevented from contaminating the citrus nursery area;
- (c) seed boxes and seedling containers are raised completely off the ground;
- (d) there is an effective nematode—and phytophthora—control programme;
- (e) all rootstock plants are grown in polyethylene bags or other suitable containers;
- (f) the soil or potting mix used in boxes, trays, bags, or containers—

- (i) permits effective drainage;
 - (ii) is free from harmful pathogens; and
 - (iii) is not mixed or stored on a surface which is infested with soil pathogens;
 - (g) the roots of plants in containers do not come into contact with soil outside of the container;
 - (h) budded seedlings are kept in rows with gaps between different budwood sources, with the first and last bag or container of seedlings budded from each budwood bundle in each row clearly labelled with the bud source, rootstock, and date of budding; and
 - (i) the site on which the citrus nursery is located shall accord with the following requirements—
 - (i) entry onto the land or premises on which the citrus nursery is located shall be by way of a single gate;
 - (ii) the site on which the citrus nursery is located shall be kept free of any exterior field, or container-grown, plants from any genera, species or variety of citrus relatives (such as *Murraya* *supp.*);
 - (iii) citrus plant stock ready for delivery shall be maintained in a screened enclosure in accordance with sub-paragraph (iv);
 - (iv) the citrus nursery shall—
 - (A) be covered entirely with insect-proof material capable of excluding aphids of a minimum size of 266 x 818µm;
 - (B) have a double entry with solid sides and a roof, to facilitate positive pressure air displacement; and
 - (C) be fitted with a walk-through disinfecting sprayer and a foot bath at the first point of entry.
- (5) Where on the appointed day a citrus nursery does not satisfy the requirements specified in paragraph (4), the owner thereof shall within a period of one year from that date, take such action as is necessary to satisfy the requirements and shall thereupon apply to the Agency for registration of the citrus nursery.

5A.—(1) The operator of a citrus nursery shall—

- (a) ensure that systems are in place at the nursery for ascertaining whether a person seeking entry to the nursery has visited any citrus field immediately prior to seeking such entry; and
- (b) refuse entry to the citrus nursery by any person who has visited any citrus field immediately prior to seeking such entry.

(2) An operator of a citrus nursery who contravenes paragraph (1) shall be liable upon conviction before a Resident Magistrate to a fine not exceeding fifty thousand dollars or to imprisonment for a term not exceeding twelve months or to both such fine and imprisonment.

5B.—(1) The operator of a citrus nursery shall keep a record of all persons entering the citrus nursery, which record shall—

- (a) in respect of each such person, set out the person's name and contact information, time of entry, purpose of entry and time of departure; and
- (b) be made available, by the operator, for inspection upon request by an officer of the Agency.

(2) An operator of a citrus nursery shall maintain a nursery protocol detailing the long-term maintenance of its citrus trees, including provision for the chemical treatment and inspection of the trees.

(3) An operator of a citrus nursery which has at all times less than five hundred citrus trees in stock shall be exempt from the requirements of paragraph (2), but shall observe, in respect of its citrus trees, such long-term maintenance procedures as may be established by the Agency.

5C.—(1) Where, upon any inspection of a citrus nursery by a Quarantine Officer, the Officer is satisfied that—

- (a) the *psyllid* (*Diaphorina citri*) is present; or
- (b) conditions at the nursery are such as to put any citrus plants at risk of infection by any notifiable plant pest, the Officer may order that the citrus nursery be placed under quarantine and that the plants, utensils, packaging and other articles located at the nursery not be moved, dealt with or otherwise interfered with, except in accordance with section 23 of the Act.

(2) The provisions of section 23, 24, 25, 28, 30 and 31 of the Act shall apply (with any necessary modifications) in respect of any plants or articles the subject of a quarantine order under paragraph (1).

6. The owner of every registered citrus nursery shall display the certificate of registration in a conspicuous place in the citrus nursery.

7. A certificate of registration shall be valid for a period ending on the 30th day of June next after it is granted so, however, that if the period is less than one calendar year, the application fee shall not be *pro rated* over that period.

8.—(1) The owner of every registered citrus nursery shall, in the month of May in every subsequent year after first registration, apply to the Agency for renewal of the registration of the citrus nursery.

(2) The provisions of regulations 5 (2), (3) and (4), 6 and 7 shall apply to the renewal of registration of a citrus nursery as they apply to registration of a citrus nursery.

(3) Where a certificate of registration is renewed that certificate shall be valid for a period of one year from the 1st day of July in any year.

9. The Agency may cancel the registration of a citrus nursery where an owner—

(a) knowingly sells citrus trees infested or infected with a pathogen;

(b) fails to maintain the citrus nursery conditions specified in regulation 5(4);

(c) misrepresents citrus nursery stock as being certified citrus trees; or

(d) in writing, requests the Agency to cancel the registration or the renewal of registration of the citrus nursery.

10. A person shall not establish a citrus nursery on a site which has not been free of citrus for the last three years.

Certification of Seed Source Tree

11.—(1) A person who, on the appointed day is the owner of a citrus tree shall, within one year from that day make an application to the Agency in the form set out as Form 3 in the First Schedule for the tree to be certified as a seed source tree, First Schedule
Form 3

(2) Any person who, after the appointed day, is the owner of a citrus tree and is desirous of establishing that citrus tree as a seed source tree, shall apply to the Agency in the same manner as specified in paragraph (1).

(3) Where a tree is to be established as a seed source tree under paragraph (2), that tree must be vegetatively propagated from a parent tree or a certified scion tree.

(4) The Agency shall, upon receipt of an application accompanied by the appropriate fee specified in the Second Schedule, under paragraph (1) or (2), cause a visual inspection to be carried out of the prospective seed source tree and the trees surrounding it during fruiting, to determine whether the trees are free from bark and leaf symptoms of the psorosis complex of viruses, citrus blight, citrus viroids, decline, gummosis, or any other recognizable symptom of citrus diseases and that the prospective seed source tree is free of unacceptable fruit mutation. Second
Schedule

(5) If on an inspection under paragraph (4) the prospective seed source tree is found—

(a) to be satisfactory, the Agency shall, collect buds from the prospective seed source tree and index them for the psorosis complex of viruses;

(b) not to be satisfactory, the Agency shall so notify the applicant in writing stating the reasons therefor.

(6) If—

(a) the indexing under paragraph (5) (a) proves to be negative;

(b) the tree has bourn fruit which is horticulturally true-to-type and there is no evidence of bud mutation in the foliage;

(c) the tree is propagated from a parent tree or certified scion tree,

the Agency may issue to the applicant a certificate in the form set out as Form 4 in the First Schedule, together with a numbered tag. Form 4.

(7) A certificate issued under paragraph (6) shall be valid for a period of four years.

(8) The cost of indexing referred to in paragraph (5) (a) shall be born by the owner of the tree.

12.—(1) No person shall sell citrus seeds in Jamaica unless the seeds are from a tree that has been certified as a seed source tree.

(2) A tree which has been certified as a seed source tree shall have its identification number clearly marked on the bark with a weather proof marker.

13. The holder of a certificate under regulation 11 (6) may, within three months before the expiry thereof, apply to the Agency for a renewal of certification and the provisions of regulation 11 shall apply in respect thereto.

14. The Agency may cancel a seed source tree certificate—

(a) if an annual inspection of the seed source tree during fruiting reveals evidence of—

- (i) symptoms of virus or other bud-transmissible disease on the seed source tree or any of the trees immediately surrounding that tree;
- (ii) careless handling of seeds collected from the seed source tree;
- (iii) improper keeping of records relating to a seed source tree, which is likely to confuse the facts regarding the identity of the trees;
- (iv) an unacceptable degree of mutation on the fruit or foliage of the seed source tree;

(b) where, having removed tested buds from a prospective seed source tree and propagated them on indicator plants in test facilities approved by, maintained and paid for by the Agency, the psorosis complex of viruses after indexing is present; or

(c) where the holder thereof in writing requests the Minister to cancel the certificate.

15.—(1) The Agency may, where a certificate is cancelled under regulation 14 (a) (i) or (iv) re-issue the certificate if, on an inspection, the Agency finds that after the removal of the affected tree, indexing tests reveal that the disease has not been transferred to any other seed source tree.

(2) The indexing tests referred to in paragraph (1) shall be carried out at the expense of the owner of the tree.

Parent Trees or Certified Scion Trees

16.—(1) A person who is desirous of having a citrus tree certified as a ~~certified~~ scion tree or a parent tree shall make an application to the Agency in the form set out as Form 5 in the First Schedule for the tree to be certified as a certified scion tree or parent tree; and the application shall be accompanied by the appropriate fee specified in the Second Schedule.

First Schedule:
Form 5

Second Schedule

(2) The Agency shall, upon receipt of an application under paragraph 1, cause the required test, as prescribed under regulations 17, 18, 19 and 21, to be carried out.

(3) If on testing the prospective tree is found—

- (a) to be satisfactory, the Agency shall issue a certificate in the form set out in Form 6 in the First Schedule.
- (b) to not be satisfactory, the Agency shall so notify the applicant in writing stating the reasons therefor.

First
Schedule.
Form 6.

(4) A certificate issued under paragraph (3) shall be valid for a period of four years.

17. The Agency shall test all parent trees and certified scion trees for the citrus tristeza virus, the psorosis complex of viruses, citrus viroids, citrus variegated chlorosis, greening, stubborn, and any other graft-transmissible diseases at such intervals as the Agency may determine.

18.—(1) The Agency shall, where there is a new accession of a prospective parent tree—

- (a) carry out short-term indexes for the presence of the citrus tristeza virus, citrus viroids, and the psorosis complex of viruses;
- (b) carry out long-term indexes with the budwood of the prospective parent trees by establishing from the budwood of the prospective parent trees—
 - (i) two trees on Orlando tangelo or Clemelin rootstock as an index for the citrus cachexia viroid; and
 - (ii) two trees on poncirus trifoliata, as an indexing indicator for the citrus tatter leaf virus.

(2) The Agency may conditionally release to any nursery carrying out propagation of quick multiplication block trees and certified citrus trees budwood which, pursuant to paragraph (1) (a), has tested negative.

(3) A budwood propagated before the completion of the indexes listed in paragraph (1) (b) shall be subject to recall, if within twenty-four months after its release, the citrus cachexia viroid or citrus tatter leaf virus is present in the budwood.

19.—(1) The Agency may determine that a local clone be treated as a parent tree—

- (a) where the selection is of proven or anticipated commercial value to the Jamaica Citrus Industry; and
- (b) based on documented yield and fruit quality data.

(2) Where a local clone is to be treated as a parent tree, the Agency or the owner shall collect the appropriate propagating material and have it shoot-tip grafted and indexed so that it may be—

- (a) verified as being free from graft-transmissible diseases; and
- (b) retrieved as a pathogen free accession.

20. The cost of indexing under regulation 18 (1) shall—

- (a) where the new accession is to be distributed throughout the Island for the benefit of the citrus industry, be borne by the Agency; or
- (b) where use of the new accession is to be restricted, be borne by the person submitting the local clone.

21.—(1) A grower of a certified scion tree shall make that tree available to the Agency to be—

- (a) indexed for the citrus tristeza virus, citrus viroids, the psorosis complex of viruses, and other graft-transmissible diseases at such intervals as the Agency deems necessary; or
- (b) inspected for any bud mutation and evaluated for its horticultural traits.

(2) The cost of indexing, inspection or evaluation shall be borne by the owner of the certified scion tree.

22. A person shall not use budwood from a certified scion tree for the establishment of quick multiplication blocks or the propagation of certified citrus trees, unless bud cutting is witnessed by a representative of the Agency authorized in that behalf and recorded in the appropriate part of the form set out as Form 7 in the First Schedule.

First
Schedule.
Form 7.

Quick Multiplication Blocks

23.—(1) A grower who intends to propagate a tree for quick multiplication blocks shall ensure that—

- (a) the citrus tree, whether field-grown or containerized or grown while protected from insect vectors, is propagated on vigorous rootstocks, separated from other propagation, and identified with plainly visible, durable markers;
- (b) each clone for quick multiplication blocks in field-grown nursery rows is separated within the row by a gap with each gap properly labelled with the name of the clone and the date budded;
- (c) trees grown on greenhouse benches are separated by gaps with the first and last containers of each clone clearly labelled with the clone and the date budded.

(2) The size of the gap referred to in paragraph 1 (b) shall be determined by the Agency.

24. A grower of quick multiplication block trees may use those trees—

- (a) as a certified source of budwood for production of certified citrus trees for a period of up to forty-eight months after budding, where the bud cutting is witnessed by a representative of the Agency authorized in that behalf and recorded in the appropriate part of the form set out as Form 7 in the First Schedule;
- (b) in varietal blocks, or the containerized trees as certified citrus trees, if they are planted in the field after reaching the end of the period during which they may be used as sources of budwood, as specified in paragraph (a) or in regulation 27, as the case may be.

First Schedule.
Form 7.

25.—(1) A grower of quick multiplication block trees shall ensure that all trees are tested for the citrus tristeza virus, using no more than six trees as a composite sample for testing.

(2) Where upon testing pursuant to paragraph (1) no citrus tristeza virus is found or citrus tristeza virus is present at a low incidence and the citrus tristeza virus infected trees are removed, the period specified in regulation 24 (a) may, at the discretion of the Agency, be extended to fifty-four months on approval of the Agency and payment of the prescribed fee.

(3) The testing referred to in paragraph (1) shall be at such periods as may be determined by the Agency and the cost thereof shall be borne by the grower.

26. A person shall not use budwood for quick multiplication blocks unless it comes from a parent tree certified scion tree and unless bud cutting is witnessed by a representative of the Agency so authorized and recorded in the appropriate part of the form set out as Form 7 in the First Schedule.

27. Any person who acquires any budwood bundles for the purpose of—

- (a) establishing quick multiplication blocks; or
- (b) producing certified citrus trees,

shall complete the appropriate part of the form set out as Form 7 in the First Schedule and forward the completed form to the Agency.

Certified Citrus Tree

28.—(1) A certified citrus tree may only be produced by a nursery registered pursuant to regulation 5 (3) (a).

(2) No grower shall produce a certified citrus tree unless—

- (a) only rootstock seedlings that have not previously had a bud inserted in them are used; and

- (b) if rebudding is necessary, buds from the same bud source as the original bud are used;
- (c) budwood is procured from a parent tree, certified scion tree or quick multiplication blocks, within the periods stated in regulation 24 (a) or 25 (2), as the case may be;
- (d) all budwood cut are collected into budwood bundles;
- (e) each budwood bundle is accompanied by a copy of the form set out as Form 7 in the First Schedule with the appropriate part of the form completed.

First Schedule.
Form 7.

Second
Schedule.

29. The Agency shall, upon receipt of a form under regulation 27, and upon payment of the appropriate fee set out in the Second Schedule, issue to the owner of a nursery, a tag bearing the nursery's registration number, the scion variety, the rootstock variety and date of budding, for each certified citrus tree.

30. —(1) An owner of a nursery shall accurately maintain records of the movement of every certified citrus tree while that tree is in his possession.

(2) Where the owner of a nursery disposes of a certified citrus tree he shall submit to the Agency a form in the form set out as Form 8 in the First Schedule.

First Schedule.
Form 8.

(3) Every person who receives a certified citrus tree shall, within thirty days of receipt thereof, inform the Agency of the final location of the tree.

31. Budwood from a certified citrus tree shall not be used as a further source of certified budwood.

Varietal Block Tree

32. —(1) A grower shall not identify a tree as a varietal block tree unless it is—

- (a) the progeny of a parent tree or certified scion tree; and
- (b) propagated on rootstocks that are—
 - (i) recommended or proven for the citrus industry;
 - (ii) separated from other propagations;
 - (iii) grown with planting spaces recommended by the Agency for the particular variety; and
 - (iv) identified with plainly visible and durable markers as trees intended for varietal blocks.

(2) A varietal block tree shall be made available to the Agency each year in order that the Agency may carry out an annual evaluation of its horticultural characteristic.

33.—(1) A person shall not cut and propagate budwood from varietal block trees for production of quick multiplication blocks or certified citrus tree.

(2) Any cutting and propagating under paragraph (1) shall be allowed for research purposes only and such cutting shall be appropriately recorded on that part of the form set out as Form 7 in the First Schedule.

First Schedule.
Form 7

34. Any person who acquires budwood bundles for the purposes of establishing varietal block trees shall complete the appropriate part of that form set out as Form 7 in the First Schedule, which accompanied the budwood bundles.

Form 7

General

35. Every application made pursuant to these Regulations shall be signed—

- (a) by the owner, if the applicant is a sole proprietor;
- (b) by the managing partner, in the case of a partnership;
- (c) by a director, in the case of a body corporate.

36.—(1) Any nursery owner aggrieved by the decision of the Agency—

(a) not to grant registration under regulation 5 (3) (b) or certification under regulation 11 (5) (b); or

(b) to cancel—

(i) registration under regulation 9 (a), (b) or (c); or

(ii) certification under regulation 14 (a),

may appeal in writing to the Minister within thirty days of the decision stating the grounds of the appeal.

(2) A copy of the appeal shall be served on the Agency.

(3) The Minister may call such persons to give evidence as he considers necessary.

(4) The Minister after hearing the evidence under paragraph (3) may—

- (a) affirm the decision of the Agency; or
- (b) grant registration, with or without conditions; or
- (c) grant certification, with or without conditions.

37. Any person who—

- (a) falsifies, alters, or mutilates any documents;

- (b) connives with any person to use any document for an improper use;
- (c) assaults or obstructs any representative of the Agency in the carrying out of any duties under these Regulations;
- (d) knowingly gives any information which is false in any material particular;
- (e) in the exercise of his function under these Regulations accepts any financial reward to do or to refrain from doing any act in contravention of the Regulations;
- (f) operates a citrus nursery which is not registered;
- (g) knowingly grows or sells a citrus tree as a certified citrus tree;
- (h) misrepresents a citrus tree as a parent tree, certified scion tree, certified seed source tree, varietal block tree or quick multiplication block tree;
- (i) carries out bud cutting or uses budwood in contravention of these Regulations;
- (j) fails to make a tree available for testing or indexing;
- (k) fails to keep proper records;
- (l) fails to properly complete any form;
- (m) contravenes any provision of these Regulations,

shall be guilty of an offence and shall be liable to a fine not exceeding ten thousand dollars or a term of imprisonment not exceeding six months, or both such fine and imprisonment.

FIRST SCHEDULE

(Regulations 5(1) and (3),
11(1) and (6), 16(1) and (3),
22, 24(a), 26, 27, 28, 30(2),
33(2), 34)

FORM I

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

Citrus Nursery Application Form

I _____
Name and Title of Applicant

of _____
Mailing Address

Hereby apply to register ☐ renew registration ☐
(tick the appropriate box)

If application is for renewal of
registration state registration number _____

Name of Citrus Nursery _____

Location of Citrus Nursery _____

Estimated Number of plants to be sold for

Registration Period: _____

Signature of Applicant _____
(Company stamp where applicable)

Date _____

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

FIRST SCHEDULE, *contd.*

FORM 2

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

Citrus Nursery Registration Certificate

Citrus Nursery Registration Number _____

Name of Citrus Nursery _____

Location of Citrus Nursery _____

is registered to propagate certified citrus trees in accordance with the Citrus Plant (Certification) Regulations, 1999.

This certificate is valid for the period from _____ to _____

Director of Agency_____
Date

FORM 3

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

*Seed Source Tree Application*I _____
Name and Title of Applicantof _____
Nursery Name_____
AddressNursery Registration No. _____
hereby apply to have the following tree(s) of the Variety_____
Certified as a seed source tree.

FIRST SCHEDULE, *contd.*FORM 3, *contd.*

The tree is located at block _____ row _____ tree _____

Draw a map in the space provided below to show the exact location of the tree.

Signature of Applicant _____

(Company Stamp where applicable)

Date _____

FORM 4

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

Seed Source Tree Certificate

Tree Identification Number _____

Located at _____

Name of Nursery

Address of Nursery

is hereby certified to be a seed source tree.

The variety of which is _____

Location of which is _____ block _____ row _____

This certificate is valid for the period _____ to _____

Director of Agency

Date

FIRST SCHEDULE, *contd.*

FORM 5

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

Certified Scion Tree or Parent Tree Application

I _____
Name and Title of Applicant

of _____
Nursery Name

Address

Nursery Registration No. _____

hereby apply to have the following tree(s) of the Variety

certified as a Certified Scion Tree or Parent Tree.

The tree is located at block _____ row _____ tree _____

Draw a map in the space provided below to show the exact location of the tree.

Signature of Applicant _____
(Company Stamp where applicable)

Date _____

FIRST SCHEDULE, *contd.*

FORM 6

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

Certified Scion Tree or Parent Tree Certificate

Tree Identification Number _____

Located at _____

Name of Nursery

Address of Nursery

is hereby certified to be a Certified Scion Tree or Parent Tree Certificate.

The variety of which is _____

Location of which is _____ block _____ row _____

This certificate is valid for the period _____ to _____

Director of Agency

Date

FIRST SCHEDULE, *contd.*

FORM 7

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

BUD CUTTING FORM

Check as appropriate _____ Buds are being cut to establish certified scion trees
_____ Buds are being cut to establish varietal block trees
_____ Buds are being cut to establish quick multiplication block trees
_____ Buds are being cut to establish certified citrus trees

To be filled out by the Agency.
Representative performing bud cutting

To be filled out by the nursery receiving the buds.
Submit the completed form within 30 days of receipt of buds

Clone/Variety Identification Number	No. of buds cut	Rebud	Date Cut

Buds supplied by _____
(Name of Nursery)

Address of Nursery _____

Nursery Registration No. _____

(Name and Signature of Agency Representative)

Rebud= Check this column if the buds are being used to rebud previously budded rootstocks. The same clone/variety source must be used as was used initially.

Retain a copy and submit the original to:
Jamaica Citrus Protection Agency,
Bog Walk, St. Catherine.

Rootstock	Block/ House	Row/ Bench	No. of Trees Budded	QMB No.**

I hereby certify that this information is true and correct to the best of my knowledge.

Buds received by _____
(Name of Nursery)

Nursery Registration No. _____

Address: _____

Name and Signature of
Owner of Nursery _____

QMB-Quick multiplication block number assigned if a quick multiplication block is being established.

FIRST SCHEDULE

FORM 8

THE CITRUS PLANT (CERTIFICATION) REGULATIONS, 1999

TREE MOVEMENT FORM

I _____

Name and Title of Applicant

of _____

Name of Nursery

Address

Nursery Registration Number

Hereby apply to have the tree(s)

Listed hereunder moved to _____

Location

Description of tree(s) _____

NUMBER OF CERTIFIED CITRUS TREE	VARIETY	ROOTSTOCK

Name of person receiving tree(s) _____

Signature of Applicant _____

(Company stamp where applicable)

Date _____

SECOND SCHEDULE

(Regulations 5(2),
11(4), 16(1), 29)

FEEES

1. Application for:

Registration or renewal of registration of citrus nursery	\$10,000
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Seed source tree or certified scion tree certification or re-certification	\$1,000
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2. Tag for certified citrus tree	\$15.00
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3. Witnessing bud cutting	\$1 per bud
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4. Extension of Quick Multiplication Block beyond 24 months	\$5 per tree
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THE PLANTS (QUARANTINE) ACT

REGULATIONS

*(under section 38(1)(a))*THE PLANTS (QUARANTINE) (WOOD PACKAGING IN INTERNATIONAL TRADE)
REGULATIONS, 2012*(Made by the Minister on the 3rd day of July, 2012)*

L.N. 92A/2012

PART I. Preliminary

1. These Regulations may be cited as the Plants (Quarantine) (Wood Packaging in International Trade) Regulations, 2012. Citation.

2. In these Regulations— Interpretation.

“composite unit” means a unit of wood packaging material made of both treated wood and processed wood material that does not require treatment;

“CPM” means the Commission on Phytosanitary Measures;

“debarking” means the removing of bark from round wood, but does not necessarily make the wood bark free;

“dunnage” means wood packaging material used to secure or support a commodity but which does not remain associated with the commodity;

“fumigant” means any chemical that reaches the commodity being treated wholly or primarily in a gaseous state;

“fumigation enclosure” means building or tarpaulin on a framed structure where or under which the fumigation takes place;

“heat treatment” means the process in which a commodity is heated until it reaches a minimum temperature for a minimum period;

“hot gassing” means the application of methyl bromide through a vapourizer for killing, inactivation or removal of pests;

“ISPM” means International Standards for Phytosanitary Measures;

“Jamaican waters” means the Jamaican coastline outwards to 200 nautical miles;

“methyl bromide treatment” means the application of methyl bromide through a vapourizer for killing, inactivation or removal of pests;

“processing wood” means wood that is undergoing methyl bromide fumigation;

“producer” means any company or entity that—

- (a) assembles wood; or
- (b) manufactures wood products, to be used as packing material;

“treatment code” means the IPPC abbreviation (that is to say, HT for heat treatment or MB for methyl bromide) indicating the kind of treatment that wood packing material has undergone;

“wood” means any wood that is intended for use as packaging material, regardless of whether it has yet undergone the required treatment or debarking required by these Regulations;

“wood packages” means packages made of wood, whether or not the wood used to make the packages has undergone the treatment and debarking required by these Regulations;

“°C” means degrees measured in Celsius.

PART II. *Approved Treatments Associated with Wood Packaging Material*

Debarking

3.—(1) Wood shall not be used as packaging material by any person, company or other entity unless it has first been debarked.

(2) Debarking shall be undertaken—

- (a) before treatment, where methyl bromide treatment is being used; or
- (b) either before or after treatment, where heat treatment is being used.

(3) After the debarking process has been completed, the wood shall be considered debarked notwithstanding that pieces of bark remain in the wood, provided the remaining pieces of bark are—

- (a) visually separate;
- (b) clearly distinct, and
- (c) either—
 - (i) less than three centimetres wide, regardless of their length; or
 - (ii) greater than three centimetres wide, with the total surface area of an individual piece of bark being less than fifty centimetres squared.

4. Before being used for packaging, all wood shall be treated using either of the following methods of treatment—

Treatment of
wood

- (a) heat treatment; or
- (b) methyl bromide treatment.

5.—(1) Where any person applies heat treatment to processing wood, he shall do so in a manner that ensures that the entire profile of the wood, including its core, achieves and maintains a temperature of not less than 56°C, for a duration of not less than thirty continuous minutes.

Heat Treatment

(2) Any process or energy source that is suitable for ensuring compliance with paragraph (1) may be utilized in the application of heat treatment, and such process or energy source may be selected from a range of options, including but not limited to the following—

- (a) kiln-drying;
- (b) heat-enabled chemical pressure impregnation; or
- (c) microwave treatment.

6.—(1) Where any person applies the methyl bromide treatment, he shall process the wood in a manner that ensures that the entire profile of the wood, including its core, achieves a minimum concentration-time product over a period of twenty-four continuous hours at the temperature and final residual concentration specified in Table I of the Schedule.

Methyl bromide
treatment

Table I
Schedule

(2) The concentration-time product shall be measured in its ambient atmosphere.

(3) The temperature of the wood and of its ambient atmosphere shall be at least 10°C throughout a period of not less than twenty-four continuous hours.

(4) The concentration-time product shall be checked, and the relevant measures recorded, at each of the following intervals during the period in which the wood is continuously being exposed—

- (a) two hours;
- (b) four hours; and
- (c) twenty-four hours.

(5) Where the wood is exposed continuously for longer than twenty-four hours and at the corresponding temperature as stipulated in Table I of the Schedule, additional measurements shall be recorded at the end of the period of exposure.

(6) The term “concentration-time product”, in relation to methyl bromide treatment, means the sum of the product of the concentration (g/m^3) and time (h) over the duration of the treatment.

Duties of
quarantine officers.

7.—(1) A person who carries out methyl bromide treatment of wood shall ensure that—

- (a) fans are used appropriately during the gas distribution phase of the fumigation to ensure that equilibrium is reached;
- (b) fans are positioned to ensure that the fumigant is rapidly and effectively distributed throughout the fumigation enclosure, within one hour of its application;
- (c) fumigation enclosures are not loaded beyond eighty per cent of their volume;
- (d) fumigation enclosures are well sealed and as gas tight as possible;
- (e) where fumigation is to be carried out under sheets, such sheets are made of gas proof material and sealed appropriately at all seams and at floor level;
- (f) the fumigation site floor is—
 - (i) impermeable to the fumigant; or
 - (ii) covered with gas-proof sheets;
- (g) where practicable, hot gassing is performed;
- (h) methyl bromide treatment is not applied to wood exceeding twenty centimetres in cross section;
- (i) when calculating methyl bromide dosage, compensation is made for gas mixtures (such as two per cent chloropicrin) so as to ensure that the total amount of MB applied meets the dosage required by ISPM15;
- (j) initial dosage and post-treatment product handling procedures take account of likely methyl bromide sorption by treated wood or associated products such as polystyrene boxes;
- (k) the measured temperature of the wood, including its core, or the ambient air, whichever is lower, is used to calculate the MB dose, and shall be at least 10°C throughout the duration of the treatment;
- (l) any wood that is to be fumigated is not wrapped or coated in materials impervious to the fumigant; and
- (m) treatment providers retain, for auditing purposes, records of MB treatments for such time as may be stipulated by the Chief Plant Quarantine Officer.

(2) The Chief Plant Quarantine Officer may recommend that, where technically and economically feasible, the measures described in the 2008 CPM Recommendation on Replacement or Reduction of the Use of MB as a Phytosanitary Measure be taken to reduce or eliminate emissions of MB to the atmosphere.

PART III. *The Mark and its Application*

8.—(1) All wood used for packaging shall bear a mark indicating that it has been subjected to approved phytosanitary treatment in accordance with these Regulations. Wood to be marked

(2) The mark referred to in paragraph (1) shall comprise the following components—

- (a) the symbol, depicted in accordance with regulation 9;
- (b) the country code of the country in which it was subjected to the required treatment, in accordance with regulation 10;
- (c) the code assigned to the person that administered the treatment, in accordance with regulation 11;
- (d) a treatment code, in accordance with regulation 12, using the appropriate abbreviation selected from Table 2 of the Schedule, and shall meet the specifications set out in paragraph (3). Table 2
Schedule

(3) The specifications referred to in paragraph (2) are that the mark shall be—

- (a) presented in a size, a font type and a position that ensure that the mark may be viewed without the use of a visual aid;
- (b) rectangular or square in shape and contained within a border line with a vertical line separating the symbol from the code components;
- (c) durable; and
- (d) non-transferable.

and shall not be hand drawn and shall not bear either of the colours red or orange.

(4) For the purposes of this regulation, a mark may contain small gaps in—

- (a) the border;
- (b) the vertical line; and
- (c) elsewhere among the components of the line, in order to facilitate the use of stenciling.

(5) Subject to paragraph (6), no information other than the matters specified in paragraph (2) shall be contained within the border of the mark.

(6) If additional marks such as the trademark of the producer or the logo of the authorizing body are considered useful to protect the use of the mark on a national level, such information may be provided adjacent to, but outside of, the border of the mark.

(7) Every person who is assigned a mark under these Regulations shall ensure that—

- (a) only treated material is stamped with the mark;
- (b) the mark is kept in a secure place;
- (c) the Chief Plant Quarantine Officer is informed as soon as the mark needs to be replaced;
- (d) he makes all necessary arrangements, in collaboration with the Chief Plant Quarantine Officer, to have a replacement mark made at the expense of the person to whom the mark is assigned; and
- (e) upon cessation of the operation, the mark is returned to the Chief Plant Quarantine Officer.

(8) Every assigned person who breaches—

- (a) sub-paragraph (a) of paragraph (7), commits an offence and is liable upon conviction in a Resident Magistrate's Court to a fine not exceeding two hundred thousand dollars or to imprisonment for a period not exceeding twelve months or to both such fine and imprisonment; or
- (b) sub-paragraph (b), (c) or (d) of paragraph (7), shall have his mark withdrawn by the Chief Plant Quarantine Officer.

Symbol

Table 3
Schedule

9.—(1) The design of the symbol shall closely resemble that set out in Table 3 of the Schedule and shall be presented to the left of the other components of the mark.

(2) Nothing in these Regulations shall be construed as invalidating any symbol solely on account of it not having been registered under national, regional or international procedures as any of the following—

- (a) a trademark;
- (b) a certification;
- (c) a collective mark; or
- (d) a guarantee mark.

10. The country code shall be the International Organization for Standards two-letter country code, which shall be separated by a hyphen from the code of the treatment provider. Country Code.

11. The treatment provider code shall be a unique combination of letters and numerals assigned under regulation 13 to the— Treatment provider code.

- (a) producer or treatment provider who applies the mark; or
- (b) entity otherwise responsible to the Chief Plant Quarantine Officer for ensuring that appropriately treated wood is used and properly marked.

12.—(1) The treatment code shall be the International Plant Protection Convention abbreviation for the approved measure used, as illustrated in Table 4 of the Schedule; and shall appear after the country code and the code from either the producer or the treatment provider. Treatment code.
Table 4
Schedule.

(2) The treatment code shall appear on a separate line from the country code and the code from either the producer or the treatment provider or, shall be separated by a hyphen, if presented on the same line as the other codes.

13.—(1) The Chief Plant Quarantine Officer shall be responsible for the issue of marks under this registration. Issue of marks.

(2) A mark may be issued to persons in the business of—

- (a) manufacturing and treating wood packaging material; and
- (b) treating wood packaging material not manufactured by them.

(3) The Chief Plant Quarantine Officer shall keep a record of the name and particulars of every person to whom a mark is issued under this regulation, logged in relation to the relevant treatment provider code and treatment code.

(4) A person who uses a mark issued under this regulation shall ensure that mark is placed in a location that is visible when the wood packaging is in use, such as on at least two opposite sides of the wood packaging unit.

14.—(1) Where various components are integrated into a unit of wood, the resultant composite unit shall be considered a single unit for making purposes. Single units

(2) Where the processed component of a composite unit does not require treatment, the mark shall appear on the processed wood material components of the composite unit.

(3) This regulation does not apply to temporary assemblies of wood.

Dunnage.

15.—(1) Wood treated for use as dunnage may not be cut to final length by any person, until loading of a conveyance takes place.

(2) Shippers shall ensure that all dunnage used to secure or support commodities—

(a) is treated; and

(b) has displayed on it, in a clear and legible manner, the mark described in these Regulations.

(3) Small pieces of wood that do not included all the required elements of the mark shall not be used by any shipper for dunnage.

(4) Appropriate marking of dunnage may be done by shippers in any of several ways, including—

(a) application of the mark to pieces of wood intended for use as dunnage along their entire length at very short intervals, so, however, that where very small pieces are subsequently cut for use as dunnage, the cuts shall be made so that an entire mark is present on the dunnage used;

(b) additional application of the mark to treated dunnage in a visible location after cutting, provided that the shipper is authorized so to do.

PART IV. *Conditions of Entry into Jamaica*

**Non-compliant
wood packaging
material.**

16.—(1) A Quarantine Officer or any other person authorized by the Chief Plant Quarantine Officer may refuse to grant an unloading permit, required by section 21 of the Act, in relation to any shipment containing wood or wood packages that violates the provisions of these Regulations.

(2) An unloading permit may be granted in relation to a shipment under paragraph (1) only if a Quarantine Officer determines that it is feasible to separate the remaining cargo from the non-compliant wood or wood packages.

(3) In the circumstances described in paragraph (1) or (2)—

(a) an arrangement to have the non-compliant wood or wood packages treated shall be proposed by the importer to the satisfaction of a Quarantine Officer before the remaining cargo may be released to the consignee and the non-compliant wood or wood packages shall be permitted entry subject to the aforementioned arrangement;

(b) all costs associated with the treatment of any non-compliant wood or wood packages pursuant to an arrangement under paragraph (a) shall be paid by the importer or other interested party;

- (c) where a Quarantine Officer determines that treatment of non-compliant wood or wood packages would present an undue risk to the plant health of Jamaica, the non-compliant wood or wood packages shall be destroyed by incineration at the expense of the importer or other interested party; and
- (d) a Quarantine Officer shall require immediate removal from Jamaica of any shipment consisting wholly of unmarked wood or wood packages which are not in compliance with the requirements of these Regulations.

17. A Quarantine Officer shall, where he determines that movement within Jamaica while arranging for treatment or destruction would present an undue risk to the plant health of Jamaica, order the re-export from Jamaica, or destruction by incineration of any marked wood or wood packages found to be infested with a live wood-boring pest of any of the following families, namely—

Re-export or
destruction.

- (a) cerambycidae (longhorned beetles);
- (b) buprestidae (wood-boring beetles);
- (c) siricidae (woodwasps);
- (d) cossidae (carpenter moths);
- (e) curculionidae (weevils);
- (f) platypodidae (ambrosia beetles);
- (g) sesiidae (clearwing moths); and
- (h) scolytidae (bark beetles);

18.—(1) Dunnage which is not in compliance with these Regulations and which is located on a ship, shall be secured under tarp, cover or within closed holds or containers, or in a container secured against the escape of pests on the marine vessel, so as to prevent pests from escaping while in Jamaican waters.

Securing of
dunnage

(2) Failure to appropriately hold dunnage in accordance with paragraph (1) may result in additional enforcement measures being applied to the person or organization having custody of the dunnage.

(3) A Plant Quarantine Officer may permit dunnage referred to in paragraph (1) to enter Jamaica and be treated in accordance with the treatment protocol for non-compliant wood or wood packages outlined in regulations 5 and 6.